

An Act

To amend the Constitution

ENACTED by the Parliament of Mauritius as follows —

1. Short title

This Act may be cited as the Constitution of Mauritius (Amendment) Act 1995. *No 23*

2. Interpretation

In this Act —

"Constitution" means the Constitution of Mauritius.

3. Section 16 of the Constitution amended

Section 16 of the Constitution is amended in subsections (3) and (5) by deleting the words "colour or creed" wherever they appear and replacing them by the words "colour, creed or sex".

4. Section 20 of the Constitution amended

Section 20 of the Constitution is amended in subsections (3) and (4) by deleting the words "his father" wherever they appear and replacing them by the words "either of his parents".

5. Section 21 of the Constitution amended

Section 21 of the Constitution is amended —

- (a) by deleting the words "a person" and replacing them by the words "another person";
- (b) by deleting the words "woman" and "she" wherever they appear and replacing them by the words "person" and "he" respectively.

6. Section 22 of the Constitution amended

Section 22 of the Constitution is amended —

- (a) by deleting paragraph (a) and replacing it by the following paragraph —
- (a) neither of his parents is a citizen of Mauritius; or
- (b) in paragraph (b) by deleting the words "his father" and replacing them by the words "either of his parents".

7. Section 23 of the Constitution amended

Section 23 of the Constitution is amended by deleting the words "his father" and replacing them by the words "either of his parents".

8. Section 24 of the Constitution amended

Section 24 of the Constitution is amended —

- (a) by deleting the words "a person" and replacing them by the words "another person";
- (b) by deleting the words "woman" and "she" and replacing them by the words "person" and "he" respectively.

9. Section 26 of the Constitution amended

Section 26 of the Constitution is amended by deleting paragraphs (c), (d) and (e) and replacing them by the following paragraphs —

- (c) for the renunciation by any person of his citizenship of Mauritius; or
- (d) for the maintenance of a register of citizens of Mauritius who are also citizens of other countries.

10. Section 27 of the Constitution amended

Section 27 of the Constitution is amended —

- (a) by repealing subsection (2);
- (b) by renumbering subsections (3) and (4) as subsections (2) and (3) respectively; and
- (c) in the new subsection (3) by deleting the words "father" and "father's" wherever they appear and replacing them by the words "parent" and "parent's" respectively.

Passed by the National Assembly, in compliance with section 47(2) of the Constitution of Mauritius, on the sixteenth day of August one thousand nine hundred and ninety-five.

ANDRÉ POMPON

Clerk of the National Assembly

THE MAURITIUS CITIZENSHIP (AMENDMENT) ACT 1995
Act No. 24 of 1995

lassent

23 August 1995

C. UTTEM
President of the Republic

ARRANGEMENT OF SECTIONS

- Section*
1. Short title
 2. Interpretation
 3. Section 2 of the principal Act amended
 4. Section 7 of the principal Act amended
 5. Section 9 of the principal Act amended
 6. Section 14 of the principal Act amended
 7. Section 15 of the principal Act repealed and replaced
 8. Commencement

An Act

To amend the Mauritius Citizenship Act

ENACTED by the Parliament of Mauritius as follows—

1. Short title

This Act may be cited as the Mauritius Citizenship (Amendment) Act 1995.

2. Interpretation

In this Act—

"principal Act" means the Mauritius Citizenship Act.

3. Section 2 of the principal Act amended

Section 2 of the principal Act is amended in subsection (2) by deleting paragraph (c).

4. Section 7 of the principal Act amended

Section 7 of the principal Act is amended—

(a) by deleting the heading and replacing it by the following heading—

Registration of other persons

(b) by deleting subsections (1) and (2) and replacing them by the following subsections—

(1) Subject to subsections (2) and (3) and such other conditions as may be prescribed, any person, whether of full age or capacity, who is, under sections 21 and 24 of the Constitution, entitled to be registered as a citizen of Mauritius, shall be so registered on making an application to that effect to the Minister in the prescribed manner.

(2) Where a non-citizen marries a citizen of Mauritius or, immediately before the coming into force of this section was the spouse of a citizen of Mauritius, he may be registered as a citizen of Mauritius if he satisfies the Minister that he has been living with his spouse under the same conjugal roof in Mauritius for a period of not less than 4 years immediately preceding his application.

5. Section 9 of the principal Act amended

Section 9 of the principal Act is amended by repealing subsection (3) and replacing it by the following subsection—

(3) The Minister may accept a continuous period of residence of not less than 2 years in lieu of the qualification in respect of residence specified in subsection (1) (c) and (d) where a person has invested in Mauritius a sum of not less than 3,000,000 rupees.

6. Section 14 of the principal Act amended

Section 14 of the principal Act is amended in subsections (2) and (3) by deleting the words "woman", "her", "her husband" and "she" wherever they appear and replacing them by the words "person", "his", "his spouse" and "he" respectively.

7. Section 15 of the principal Act repealed and replaced

Section 15 of the principal Act is repealed and replaced by the following section—

15. Resumption of Mauritian citizenship

(1) Any person who—

(a) was a citizen of Mauritius and also a national or citizen of some other country;

- (b) attained the age of 21 on or after 12 March 1968 and before the coming into force of this section; and
- (c) ceased to be a citizen of Mauritius by virtue of his failure to renounce the nationality or citizenship of that other country,

shall, if he is ordinarily resident in Mauritius, become a citizen of Mauritius as from 1 May 1995.

(2) Where the person referred to in subsection (1) is not ordinarily resident in Mauritius he may make an application for registration to the Minister and the Minister may in his discretion grant such application.

8. Commencement

(1) Subject to subsection (2), this Act shall come into force on a day to be fixed by Proclamation.

(2) Different days may be fixed in respect of different provisions of the Act.

Passed by the National Assembly on the sixteenth day of August one thousand nine hundred and ninety five.

ANDRÉ POMPON

Clerk of the National Assembly

THE SECONDARY SCHOOLS TRUST FUND ACT 1995

Act No. 25 of 1995

I assent

C. UTEEM

President of the Republic

23 August 1995

ARRANGEMENT OF SECTIONS

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7. Meetings of the Board
8. The Director
9. Appointment of Staff of the Fund
10. Execution of documents
11. Powers of the Minister
12. Financial provisions and management
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16. Designation as Secondary Schools
17. Establishment of Board of Governors for schools
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20. Transfer of assets
21. Application of the Education Act
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